

ELIZABETH II



1985 CHAPTER xxvi

An Act to regulate prescribed expenditure and expenditure on lending to other persons by the Greater London Council during the financial period from 1st April 1985 to 30th September 1986; and for other purposes.

[16th July 1985]

WHEREAS the London Government Act 1963 1963 c. 33. (hereinafter referred to as “the Act of 1963”) as amended by the Local Government, Planning and Land Act 1980 requires that prescribed expenditure (as defined 1980 c. 65. by Schedule 2 to the Act of 1963) and expenditure on lending to other persons by the Greater London Council (hereinafter referred to as “the Council”) shall be regulated by annual money Acts and that each of such Acts shall make provision for a period consisting of a financial year (that is to say a period of twelve months ending on 31st March) and the immediately following six months:

And whereas such a financial year and the immediately following six months are in the Act of 1963 and hereinafter together referred to as a “financial period”:

1984 c. xxxii. And whereas prescribed expenditure and expenditure on lending to other persons by the Council is, in relation to the financial period ending on 30th September 1985, regulated by the Greater London Council (Money) Act 1984:

And whereas it is expedient that prescribed expenditure and expenditure on lending to other persons by the Council should be regulated as by this Act provided:

And whereas estimates have been prepared by the various committees of the Council of the amounts which may be required by the Council for the purposes of prescribed expenditure and expenditure on lending to other persons during the financial period from 1st April 1985 to 30th September 1986 (hereinafter referred to as "the financial period 1985-1986") in the execution of the powers and duties respectively delegated to the committees of the Council; and all those estimates have been adopted with amendments by the Council:

And whereas an estimate has been approved by the Inner London Education Authority of the amount which the said Authority may require in respect of prescribed expenditure during the financial period 1985-1986:

And whereas the amounts estimated to be so required as aforesaid for expenditure which is prescribed expenditure of the Council and on lending to other persons by the Council during the financial period 1985-1986 are specified in the Schedule to this Act:

And whereas no provision is to be made for the additional amount referred to in paragraph 28 (1A) of Schedule 2 to the Act of 1963 to be expended in the financial year ending on 31st March 1986:

And whereas the further sums which the Treasury in pursuance of the Act of 1963 may authorise to be expended by way of expenditure which is prescribed expenditure of the Council and on lending to other persons by the Council during the financial period 1985-1986 are set out in Part III of the Schedule to this Act:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present

Parliament assembled, and by the authority of the same, as follows:—

1. This Act may be cited as the Greater London Council Short title. (Money) Act 1985.

2. In and for the purposes of this Act—

Interpretation.

“the Act of 1963” means the London Government Act 1963;

1963 c. 33.

“the Council” means the Greater London Council;

“the financial period 1985–1986”, subject to the provisions of section 7 (Extension of Act in certain circumstances) of this Act, means the period from 1st April 1985 to 30th September 1986, both dates inclusive;

“the financial year” means the period from 1st April 1985 to 31st March 1986, both dates inclusive;

“the immediately following six months”, subject to the provisions of section 7 (Extension of Act in certain circumstances) of this Act, means the period from 1st April 1986 to 30th September 1986, both dates inclusive;

“prescribed expenditure” has the meaning assigned to it by paragraphs 25A and 25B of Schedule 2 to the Act of 1963 and references to the expenditure of money by the Council by way of, or in respect of, prescribed expenditure shall be construed accordingly;

“the Schedule” means the Schedule to this Act.

3.—(1) The purposes for which during the financial period 1985–1986 the Council may expend money by way of prescribed expenditure shall be the purposes mentioned in the first column of Part I of the Schedule.

Prescribed expenditure during financial period 1985–1986.

(2) The sums which during the said financial period the Council may expend by way of prescribed expenditure shall, as regards the financial year and the immediately following six months, be sums which, except as otherwise provided by the Act of 1963 and this Act, shall not exceed the amounts specified in the second and third columns respectively of Part I of the Schedule in relation to the said purposes.

4.—(1) The persons to whom the Council may lend money during the financial period 1985–1986 shall be the persons mentioned in the first column of Part II of the Schedule.

Loans to persons by Council during financial period 1985–1986.

(2) The sums which during the said financial period may be so lent shall, as regards the financial year and the

immediately following six months, be sums which, except as otherwise provided by the Act of 1963 and this Act, shall not exceed the amounts specified in the second and third columns respectively of Part II of the Schedule in relation to the said persons.

Additional amount in respect of prescribed expenditure and lending.

5. The additional amount for the purposes of paragraph 28 (1A) of Schedule 2 to the Act of 1963 shall be nil.

Further sums which Treasury may authorise in case of insufficiency.

6. The further sums which the Treasury may authorise to be expended under paragraph 28 (2) of Schedule 2 to the Act of 1963 by way of prescribed expenditure of the Council and on lending by the Council to other persons during the financial period 1985–1986, in case the amounts specified in Parts I and II of the Schedule or any of those amounts are found to be insufficient, shall, as regards the financial year and the immediately following six months, be sums not exceeding in the aggregate the amounts specified in the second and third columns respectively of Part III of the Schedule.

Extension of Act in certain circumstances.

7.—(1) The provisions of subsection (2) of this section shall have effect if a Bill (hereafter in this section referred to as “the 1986 Bill”) which has been promoted by the Council in pursuance of paragraph 25 of Schedule 2 to the Act of 1963 to make provision for the financial period commencing on 1st April 1986 has not been passed by 1st October 1986.

(2) In the circumstances mentioned in the foregoing subsection, the provisions of this Act and of the said paragraph 25 shall have effect as if any reference therein to the immediately following six months included a reference to the period from 1st October 1986 to the passing of the 1986 Bill and, accordingly, as if the financial period 1985–1986 consisted of the financial year and the immediately following six months (as extended by this subsection).

Saving.

8. Nothing in this Act shall be construed as authorising—

(a) the Council to exercise the powers of borrowing conferred by the Local Government Act 1972; or

(b) any of the persons mentioned in the first column of Part II of the Schedule to borrow money;

in contravention of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

1972 c. 70.

1946 c. 58.

SCHEDULE

PART I

AMOUNTS AUTHORISED FOR PRESCRIBED EXPENDITURE

Purposes of expenditure (1)	During year ending 31st March 1986 (2)	During the immediately following six months (3)	
	£	£	
1. Education	22,830,000	12,500,000	
2. Housing	88,002,000	21,500,000	
3. Transport	65,159,000	37,000,000	
4. Other purposes—			
(a) recreation and the arts ..	5,278,000	900,000	
(b) refuse disposal	13,760,000	4,100,000	
(c) fire services	4,338,000	1,200,000	
(d) land drainage and flood preven- tion	7,082,000	2,700,000	
(e) planning and industry	21,749,000	9,570,000	
(f) purposes not included in sub- paragraphs (a) to (e) of this paragraph	4,652,000	940,000	
Total	232,850,000	90,410,000	
Carried forward			£323,260,000

SCHEDULE—continued

Brought forward £323,260,000

PART II

AMOUNTS AUTHORISED FOR EXPENDITURE BY THE COUNCIL
ON LENDING

Persons to whom money may be lent		During year ending 31st March 1986	During the immediately following six months
(1)		(2)	(3)
5. London borough councils		£ 5,000	£ —
6. Governors or managers of educational institutions, including special schools and community homes; committees of school treatment centres, district nursing associations and voluntary organisations assisting social services; governors or committees of voluntary hostels, homes or other establishments; cultural bodies; staff employed by the Council or by the judicial services (for the provision of motor vehicles for official purposes); Lee Valley Regional Park Authority (for property acquisitions and development costs); and district councils being the councils of receiving districts for the purposes of the Town Development Act 1952		750,000	390,000
1952 c. 54.			
7. Sundry persons under the Small Dwellings Acquisition Act 1899, the Housing Act 1957, the Housing (Financial Provisions) Acts 1958 and 1959, the Housing Act 1969, the Housing Act 1974 and the Housing (Homeless Persons) Act 1977		12,100,000	4,700,000
1899 c. 44.			
1957 c. 56.			
1969 c. 33.			
1974 c. 44.			
1977 c. 48.			
8. Sundry persons under the London County Council (General Powers) Act 1957, the Local Authorities (Land) Act 1963 and the Inner Urban Areas Act 1978 and other relevant enactments, persons acquiring land or carrying out works on land		10,250,000	5,000,000
1957 c. xxxv.			
1963 c. 29.			
1978 c. 50.			
Carried forward—Part II		23,105,000	10,090,000
Carried forward—Part I			
			£323,260,000

SCHEDULE—*continued*

Brought forward Part I £323,260,000

PART II—*continued*

AMOUNTS AUTHORISED FOR EXPENDITURE BY THE COUNCIL
ON LENDING—*continued*

Persons to whom money may be lent	During year ending 31st March 1986	During the immediately following six months	
(1)	(2)	(3)	
Brought forward—Part II	£ 23,105,000	£ 10,090,000	
9. Sundry persons under the Act of 1963 and the Ancient Monuments and Archaeological Areas Act 1979, under the Local Government Act 1972, the National Parks and Access to the Countryside Act 1949, the Health Services and Public Health Act 1968, the Transport Act 1968, the Local Government (Miscellaneous Provisions) Act 1976 and the Local Government (Miscellaneous Provisions) Act 1982 and sundry persons other than the persons pre- viously referred to in paragraphs 5 to 9 of this Schedule to whom the Council may lend money by virtue of any enactment	45,000	10,000	1979 c. 46. 1972 c. 70. 1949 c. 97. 1968 c. 46. 1968 c. 73. 1976 c. 57. 1982 c. 30.
Total Part II	23,150,000	10,100,000	£33,250,000
Carried forward			£356,510,000

SCHEDULE—*continued*

Brought forward £356,510,000

PART III

EXPENDITURE WHICH MAY BE AUTHORISED BY THE TREASURY
BEYOND AMOUNTS SPECIFIED IN PARTS I AND II OF THIS SCHEDULE

Purposes (1)	During year ending 31st March 1986 (2)	During the immediately following six months (3)	
	£	£	
10. General enlargement of spending and lending power to provide, under Treasury sanction (and whether or not by virtue of the operation of section 7 of this Act), for possible further expenditure for purposes included, and possible further lending to persons mentioned, in Parts I and II of this Schedule respectively—			
(a) for purposes of the Inner London Education Authority	4,216,000	1,000,000	
(b) for other purposes	148,693,000	128,000,000	
Total	152,909,000	129,000,000	£281,909,000
Gross total			£638,419,000

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CHAPTER xxvi

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